

MASTER AGREEMENT
BETWEEN THE
COLDWATER COMMUNITY SCHOOLS
BOARD OF EDUCATION
and the
COLDWATER EDUCATION ASSOCIATION
07-1-24 through 06-30-2027

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ARTICLE I - RECOGNITION

- A. The Board of Education (the “Board”) of Coldwater Community Schools (“the District”), hereby recognizes the Coldwater Education Association the ("Association") as the sole and exclusive bargaining representative as defined in Act 336 of the Public Acts of 1947 as amended, for all certified teaching personnel under contract, librarians, middle and high school guidance counselors, and school social workers, but excluding substitutes, per diem appointment teachers, and non-regularly employed part-time teachers, administrators, supervisors, casual employees, and volunteers of the Adult Education programs, and all other supervisory personnel, including but not necessarily limited to the following: the Superintendent, Assistant Superintendent, Principals, Assistant Principals, and all office, clerical, and maintenance and operating employees.
 - 1. The term “Teacher”, when used in this Agreement, shall refer to all employees represented by the Association in the bargaining unit including certified teachers, social workers and counselors and singular shall include plural.
 - 2. The term “the Board” shall include its officers and agents, including administration.
- B. The board agrees not to negotiate with any other organization other than the association for the duration of this agreement.

ARTICLE II - TEACHER RESPONSIBILITIES AND ASSOCIATION RIGHTS

- A. The Association shall have the right to use school buildings at reasonable hours for meetings, provided they have prior approval from the building principal and/or superintendent. Bulletin boards, mailboxes, mail distribution and daily bulletins shall be made available to the Association and its members. The Association shall be responsible for any material placed upon the bulletin boards or distribution through mailboxes or any mail distribution or daily bulletins.
- B. The Association may use the email system for, among other things, notification of Association events, meeting dates and times, collection of personal contact information, notification of Association elections/dates/times, and notifying members of contract provisions and rights. The Association understands there is no expectation of privacy with any communications on the District's system. The Association shall assume responsibility for contents of communications and shall comply with the applicable provisions of the District's Technology Acceptable Use and Safety Policies when using its e-mail. The Association shall not use the District's mailboxes or e-mail service to disseminate information supporting or opposing a candidate or a ballot proposal or for any other unlawful reason.
- C. Upon written request, the Board agrees to furnish the Association available information concerning the financial resources of the district, adopted budgets, and such other information as the Association may reasonably require to be informed and constructively develop programs on behalf of its membership, prepare for negotiations, and process grievances. Items exempted by the Michigan Freedom of Information Act, of 1977, ("FOIA"), as amended, will not be provided unless otherwise required by the Public Employees Relations Act ("PERA"). The Association shall pay fees for producing such documents in accordance with FOIA. The Association and its agents will provide the district information requested necessary for negotiations and grievances, as required by PERA.
- D. The Association shall have the rights as afforded to it by law, the Constitutions of the State of Michigan, and the United States.
- E. The Association and the teachers recognize that the professional duty of each teacher is to use their skills and expertise in the most effective and proper manner to improve the quality of the educational process in the District.
- F. The Board agrees to allow payroll deductions for any (MESSA), and current deductions will be continued provided such deductions are duly authorized and paid for by the individual teacher involved. By October 1 of any school year, all authorization will be filed with the payroll department of the business office. Once filed, authorization shall continue in effect until a written and signed revocation by the individual teacher involved is submitted to the payroll department.
- G. Teachers will have reasonable access to their building during the summer months.

ARTICLE III - BOARD RIGHTS

- A. The Board, on its own behalf and on behalf of the electors of the district, retains and reserves unto itself, without limitation, all powers, rights, authority, duties and responsibilities conferred upon and vested in it by the laws and constitution of the State of Michigan, and the United States, including, but without limiting the generality of the foregoing, the right:
1. To the executive management and administrative control of the school system and its properties and facilities, and the activities of its employees;
 2. To hire all employees and, subject to the provisions of law and this Agreement, to determine their qualifications and the conditions for their continued employment, or their dismissal or demotion, and to promote and transfer all such employees;
 3. To establish grades and courses of instruction, including special programs, and to provide for athletic, recreational and social events for students, all as deemed necessary or advisable by the Board;
 4. To decide upon the means and methods of instruction, the selection of textbooks and other teaching materials, and the use of teaching aids of every kind and nature, after considering the recommendations of a committee representing the teaching staff concerned;
 5. To determine class schedules, the hours of instruction, and the duties, responsibilities, and assignments of teachers and other employees with respect thereto, and non-teaching activities, and the terms and conditions of employment, subject to the terms of this Agreement.
 6. To adopt reasonable rules and regulations, including establishing reasonable provisions for health, safety, and first aid of employees on grounds and at District-related events.
 7. To participate in cooperative educational programs with any entities.
- B. The exercise of the foregoing powers, rights, authority, duties and responsibilities by the Board, the adoption of policies, rules, regulations and practices, and the use of judgment and discretion shall be limited only by the specific and express terms of this Agreement and then only to the extent such specific and express terms hereof are in conformance with the Constitutions and laws of the State of Michigan and the United States. Nothing contained herein shall be considered to deny or restrict the Board of its rights, responsibilities, and authority under the Michigan General School Laws or any other national, state, county, district, or local laws or regulations as they pertain to education.

ARTICLE IV - PROFESSIONAL COMPENSATION

- A. Salaries of teachers are set forth in the attached Appendix A. The salaries contained therein shall be full compensation for the service performed by the teacher.
- B. The salary schedule is based upon a normal weekly duty load as defined in articles having to do with teaching hours, loads, and assignments.
- C. A teacher assigned an additional academic class above the normal teaching load, will be compensated on pro-rata amount of their annual base salary.
- D. A teacher engaged during the school day in negotiating on behalf of the Association with any representative of the Board shall be released from regular duties without loss of salary, provided the time for such negotiation has previously been set up by mutual agreement of the parties.
- E. Within the guidelines of reasonable judgment by the building principals and within budget, teachers may be released for educational conferences. If such teacher is released to attend the educational conference, the teacher shall receive no pay loss. Expenses approved by the employer will be allowed.
- F. Compensation is based upon the number of contractual days. For a teacher's absence not chargeable to the absences permitted in Article VIII, there shall be deducted from the teacher's salary a per diem share of the annual contract salary.
- G. Basic salaries for teacher will be based on twenty-six (26) pay periods unless a teacher notifies the payroll office by August 1 of the upcoming contract year that the teacher desires to be paid in twenty-one (21) pay periods. Based on the teacher's election, their choice will remain in effect for all future school years unless the teacher notifies the payroll office by August 1 of the upcoming school year.
- H. Compensation for extra-duty assignments outside the normal teaching load shall be paid in accordance with Appendix B and/or Appendix C. The teacher shall have the right to decline extra-duty assignments, except where such duties directly relate to teaching assignments such as band and choir.
- I. Teachers who, at the superintendent's request, agree to do curriculum development work outside the school day, and/or calendar year, will be compensated at the rate of \$40 (forty dollars) per hour. The number of hours and other conditions of the work will be agreed upon by the teacher and the superintendent prior to the work time.
- J. Teachers, who at the superintendent's request, attend professional development outside the school day, and/or calendar year, will be compensated at the rate of \$40 per hour.

- K. When initially hired, the Board has the right to place a newly-hired teacher at any salary step, up to and including, the step commensurate with the teacher's experience. The Board agrees to exercise appropriate legal discretion in granting salary step placement and to remain in accordance with all state and federal civil rights laws.
- L. Credit for military service and/or Peace Corps service may be granted for a maximum of two (2) years on the appropriate salary schedule. Said Military service credit will be granted on the basis of record of honorable discharge.
- M. Initial placement on the salary schedule shall not be subject to the grievance procedure.
- N. Teachers traveling from building to building within the district, while conducting school business, shall be reimbursed at the standard IRS mileage rate as stated January 1 for the calendar year. The same allowance shall be given for the use of personal cars for other school business providing the teacher has prior approval of the Superintendent or Assistant Superintendent for such trips.
- O. Teachers who are called upon to assist for classroom coverage by the building administration will be paid at the rate of \$40.00 (forty dollars) per hour. Time will be calculated in one-quarter hour increments (one-quarter hour minimum) rounded to the next quarter-hour. Teachers shall be required to assist in hourly classroom coverage during their planning time when directed by their building administrator.
- P. Elementary teachers will be paid \$40.00 a day or \$20.00 a half day when they are required to split up another teachers class due to the lack of a substitute teacher.
- Q. Absent an emergency, substitute teachers will be hired if the teacher is absent a half day or more, for all teachers including interventionist, elementary vocal music, art, media technology, and physical education teachers when said teachers are absent.
- R. Teachers with less than a full-time assignment will be classified as part-time. Part-time teachers will have a prorated salary and fringe benefits, provided the teacher works at least half time.
- S. The Board will reimburse teachers up to \$250.00 per semester credit hour for six (6) hours in a two (2) year period for course work pre-approved by the Superintendent provided that the teacher receives a minimum of a "B" grade.
- T. Building and district teams may be established by the administration to promote continuous district and school improvement. When teams are required to meet outside of the school day or calendar year, team members will be compensated at the rate of \$40.00 per hour. The number of hours and other conditions of the work will be agreed upon by the team members and the Superintendent prior to the work time.
- U. Employees who receive an "effective," or better evaluation, and who will not progress to another step at the start of the upcoming school year because they are at the top of the scale or a cap in the steps will receive a six-hundred dollar (\$600) bonus at the start of the next school year, and retirees will be payable by June 30th of the school year in which they received their evaluation.

ARTICLE V - TEACHING HOURS AND ASSIGNMENTS

- A. It is the responsibility of each individual teacher, as well as the Board, to provide the highest quality educational program practicable for every student in the school district. To this end, the teacher should maintain practices inherent in their profession such as: (1) carefully written daily preparation; (2) attendance at staff meetings; and (3) encouraged participation in activities of the school and community.
- B. The school year shall include one (1) pre-service, professional development, and one-half ($\frac{1}{2}$) post-service days as determined by the negotiated calendar and three (3) additional evening events to include (i.e, open houses, orientations, graduations, and student celebrations) outside the negotiated calendar as determined by the building principal. The three (3) additional evening events will be determined and shared on building calendars at the start of each school year.
- C. The Board will provide a minimum of 30 (thirty) hours of qualifying SCECH professional development for tenured teachers and a minimum of 35 (thirty-five) hours of qualifying SCECH professional development for untenured teachers. Professional Development days are to be negotiated as part of the yearly calendar. The Board and the Association will establish a district wide professional development advisory committee in accordance with MCL 388.1701 (10).
- D. Definitions:
 - 1. "Student contact time" is the time during which the teacher is responsible for providing direct classroom instruction to students, supervising an approved student activity, or carrying out an activity necessary for the implementation of student instruction.
 - 2. "Planning time" is time allocated for instructional planning and completing responsibilities inherent to one's teaching and is free from student supervision responsibilities. The last thirty-five (35) minutes of PLC time shall be considered planning. Teachers will have at least fifty (50) minutes of planning each student day, in addition to PLC time.
 - 3. "Pre-service time" is paid work time before the first student contact day which the teacher will use for planning and the preparation of individual workstations. This time will be no longer than the teacher workday.
 - 4. "Professional Development time" is paid work time within the negotiated calendar year. Students shall be excused from all identified classes, and teachers shall be provided with activities for professional development. This time will be no longer than the teacher workday.
 - 5. "Post-service time" is paid time after the last student contact day each semester/trimester and are to be used to finalize grades, update records, or to perform other activities necessary for the closure of a semester/trimester. This time will be no longer than the teacher workday.
 - 6. "Instructional time" shall consist of the time necessary for a student to meet the state mandates. Additionally, the parties agree to meet any changes required by the School Code for the life of this contract.
 - 7. "Early release PLC teamwork" is time allocated for collaborative meetings, free from student supervision, in order to discuss data, share strategies and work on curriculum

within the contract day. PLC time is seventy-five (75) minutes and may include up to three (3) PD days. Teachers will not require compensation for these three (3) days of PD.

8. The “teacher workday”, including social workers/counselors, shall extend a total of twenty (20) minutes either before or after the start of the instructional day. These 20 minutes shall be considered student supervision and is on a rotational basis for teachers. Each building’s administrator will determine the needs of the building when determining before or after school supervision. A committee of teachers, as determined by the Association, and the building administrator will determine the supervision schedule. Any additional time beyond this, as determined by the principal, will be paid at \$40.00 per hour.
9. Each certified teacher, excluding social workers/counselors, shall be assigned a minimum of two hundred eighty-five (285) minutes of planning time allocated per week and a daily minimum of thirty (30) minutes for duty-free lunch (but not less than a student’s allocated lunch period) except on board- approved professional development days.
10. The teacher’s workday shall be contiguous with no split schedule unless mutually agreed upon by the Association, the administration and all the teachers directly involved.
11. The school social worker’s/counselor’s day shall include a daily thirty (30)-minute duty-free lunch except on board-approved professional development days. Assignment and schedule flexibility for counselors, social workers and interventionists will be determined by need and subject to administrative review upon request of the assigned administrator.
12. The teacher “work year” will not exceed 186 days Monday through Friday. The Elementary work day is seven (7) hours and no minutes, and the Secondary work day is six (6) hours and fifty (50) minutes. This excludes a thirty (30) minute duty-free lunch. Elementary teachers will be paid \$500 per year as an offset for the longer day. The stipend will be paid in May. Teachers working part time, or less than a year will be paid at a pro rata basis.

E. Assignments:

Assignments shall be made at the discretion of the Administration and within the area of the teacher's competency and certification.

F. Teacher Building Meetings:

1. General faculty meetings are intended as a means of communication between Administration and all staff. Staff representatives and the principal may cooperate in setting agenda, location, frequency, and length of such meetings.
2. General faculty meetings will not exceed twelve (12) per year in number, excluding in-service, grade level, departmental, and emergency meetings. Attendance at general faculty meetings is mandatory unless excused by the building principal. Whenever possible, direct notice will be given twenty-four hours in advance. Part-time teachers shall attend all meetings. Itinerant teachers will attend a proportional number of meetings in both or all buildings to which they are assigned as agreed to by the principals involved. Excessive use of faculty meetings should be discouraged.
3. Staff meetings shall not exceed a duration of 60 minutes.

- F. Principals will prepare non-instructional duty schedules and make assignments with the exception of lunchroom duty.

ARTICLE VI - TEACHING CONDITIONS

- A. The parties recognize that optimum school facilities for both student and teacher are desirable to insure the high quality of educational environment.
- B. The Board and the Association recognize the importance of reducing the pupil/ teacher ratio in certain areas of instruction and that for the most effective learning experience the following class sizes within the grade levels indicated are desirable:

Grade	Maximum
Young 5's	20 or less
Kindergarten	26
First & Second Grade	28
Third Grade	30
Fourth and Fifth	30
Grade	Maximum
6-12 Co-Taught	28
6-12 PE	38
6-12 Performing Arts	No Maximum
6-12	All other classes 34

In the event of a teacher overload, the administration shall meet with the teacher (and the representative of the Association) to seek a workable solution to the problem(s) identified. In the event that the limits are exceeded, one of the following methods of relief shall be granted:

- Mutual consent between the teacher and the administration (and a representative of the association) that the education of students is not being adversely affected;
 - Pay overload compensation of two dollars (\$2) per day (pro-rated for secondary and enrichment teachers) per student in excess of the limits.
- C. The Board will continue its effort to keep the schools reasonably and properly equipped and maintained.
- D. The Board shall make available in each new school building or school building hereafter remodeled: an adequate lunchroom, and lavatory facilities exclusively for teacher use, and at least one room appropriately furnished which shall be reserved as a faculty lounge. This would apply to extensive modifications only.
- E. In order to provide adequate general supervision of the building, the following guidelines will apply:
- In each building the principal shall exercise the necessary authority to assign an appropriate professional staff person or persons to be responsible for the general supervision of the building in the absence of the principal.

- In each building, the requisite planning procedures will be established by the principal

with representative staff members to insure that there is at all times an appropriate professional staff person or persons in charge of the building. Said person or persons are empowered by the delegation to make decisions in those extraordinary situations which require immediate attention.

- F. Principals may institute professional development during the school hours. Implementation of such programs shall be subject to the approval of the Superintendent.

ARTICLE VII – SENIORITY, PLACEMENT, LAYOFF AND RECALL

- A. Seniority shall be defined as the length of unbroken service within the bargaining unit beginning with the first date of hire or transfer into the bargaining unit.
- B. The first date of hire shall be defined as the first day teachers report to work. Employees on unpaid leave shall not accumulate seniority. Employees on lay-off shall continue to accumulate seniority.
- C. Unpaid leave shall be defined as more than 90 days (91 full days or more) during a school year.
- D. The updated seniority list shall be published with notation of certification/approvals of each employee and emailed to employees.
- E. Employees shall file objections to the seniority list with 10 days, thereafter the list shall be final and conclusive.
- F. All teachers deemed to have the same date of hire shall be placed on the seniority list based upon the highest last four digits of the employees social security number. The teacher with the highest last four digits shall be placed as the more senior.
- G. Decisions about placement, reduction and recall of a teacher shall comply with Revised School Code Section 1248.
- H. The Superintendent or designee decides placement decisions, when a vacancy exists and when a posting is made. A “vacancy” shall be defined as an unassigned, open position or a newly created position which the district intends to fill. Vacancies shall be posted at least ten days prior to being filled.
- I. Acting within the approved budget, the Superintendent is responsible for establishing the number and nature of teaching assignments to implement the approved curriculum. If the Superintendent determines that insufficient funds are budgeted for existing staff or that a reduction in teaching staff is necessary due to a program, curricular, or other operational consideration(s), the Superintendent will recommend to the Board the teaching positions to be reduced. Prior to issuance of layoff notices, the CEA will be given an opportunity to make specific recommendations regarding the particular implementation of layoff procedures planned by the district.
- J. The Superintendent or designee has discretion to place, transfer, or layoff or recall a Bargaining Unit member into a position for which they are certified for, for a reason that is not arbitrary or capricious including, but not limited to, the following clear and transparent factors:
 - 1) Compliance with State and Federal laws, regulatory standards, and state grant, and categorical funding requirements.
 - 2) Qualifications determined by the district, including but not limited to credentials necessary for school or program accreditation.
 - 3) Disciplinary record.
 - 4) Effectiveness based on previous evaluations.
 - 5) Length of service in the grade level or subject area.
 - 6) Professional development, special training, additional training, additional certification(s), and experiences that lend themselves to the classroom.
- K. The Teacher and the Association will be notified in person, and outside of the working day, of the anticipated placement change and the reason for the change by the Superintendent or designee.

- L. A Teacher is eligible for recall for 18 months from the date the district implemented the reduction in force. Teachers placed on layoff will continue to receive all insurance benefits until the end of the month of the layoff notice. Teachers wishing to continue insurance beyond that point may do so on their own by purchasing COBRA continuation coverage. Teachers returning from layoff will be considered active employees upon receiving notice. Should a Teacher refuse to return from layoff within five business days, or ten calendar days during the summer break, they shall be deemed to have voluntarily quit. All fringe benefits will be restored to Teachers returning from layoff.
- M. Probationary Teachers cannot grieve any aspect of this Article. Tenured Teachers may grieve alleged violations of this Article through mediation.

ARTICLE VIII - LEAVES OF ABSENCE

A. Sick Leave:

1. All full-time and regularly employed part-time teachers absent from duty because of personal illness, injury (except as provided in Paragraph E of this article), or critical or emergency illness in the immediate family shall be allowed ten (10) days of leave with pay (pro rata for regularly employed part-time teachers) per year. Immediate family shall be defined as the mother, father, child, husband, wife, sister, brother, grandfather, grandmother, grandchildren, mother-in-law, father-in-law, brother-in-law, sister-in-law, son-in-law, or daughter-in-law of the teacher or the grandfather or grandmother of the teacher's spouse, significant other, or any IRS dependent.
2. Sick leave allowances granted above shall be subject to the following conditions:
 - a. Each day of sick leave shall accrue as of the first day of the month during the school year beginning with August and ending with May. If a teacher shall use days in advance of accrual, an adjustment in pay shall be made as of the close of the school year, or upon termination of the teacher's employment, if prior to the end of the school year.
 - b. Teachers shall be required to notify the building principal, or other designated authority, in the event of an absence due to personal, critical, or emergency illnesses, ninety (90) minutes prior to the beginning of each school's instructional day of the expected day of absence so that a substitute may be obtained, unless circumstances make such notification impossible or unreasonable. In order to be eligible for payment for the date of absence without notification to the principal or designate at the time specified, it will be necessary for the teacher to file with the principal a written statement concerning the reasons for the failure to notify. Based upon said reason or reasons, the principal shall have the discretion to waive notification.
 - c. In the case of an extended absence for personal illness or disability, a teacher may use sick leave days, unpaid leave days, or a combination thereof. When a teacher desires to have such an absence construed as a leave of absence, or a combination of sick leave days and a leave of absence, the teacher must notify the Superintendent in writing. Such leaves, wherever practical, should coincide with the beginning of a semester or grading period.
 - d. A teacher who is unable to teach because of personal illness or disability and who has exhausted all sick leave available, may be granted a leave of absence without pay for the duration of the illness, for a period of time up to the balance of the contract year.
 - e. When a teacher is on unpaid leave due to personal illness and has exhausted the Family Medical Leave Act (FMLA) provisions, insurance benefits will be continued only until the end of the month in which the unpaid leave began except where the teacher may be entitled to certain insurance premiums that the Board is obligated to pay as a result of the requirements of (FMLA). Such benefits may be extended at the discretion of the superintendent. A teacher on FMLA who fails to return on their own volition shall reimburse the district the health insurance premiums paid.
 - f. A teacher may apply in writing for a continued leave of absence into the next contract

year without pay or benefits.

- g. In all leaves for illness, the Board reserves the right to require an examination by a physician of its choice.
- h. A teacher, upon return from a leave for illness, shall be restored to their teaching position or to a position of like nature and status, whenever possible.
- i. Sick day accrual shall be capped at one hundred eighty (180) days. Those teachers who have accumulated more than 180 days by June 1, 2010 will be grandfathered in and capped at their current agreed-upon number.
- j. A teacher may opt to receive remuneration for unused sick days and personal days, accumulated by June 1 of the current school year at the rate of \$80 per day up to a maximum of thirteen (13) days. If a teacher chooses the “remuneration for unused sick and or personal days” option, the days for which payment is to be made shall not be allowed to accumulate and shall be forfeited annually. Payment for unused sick days, as previously described, shall be made annually and paid out by the end of the district’s fiscal year.
- k. The Board agrees to pay for and provide a long-term disability policy for each teacher.
- l. Requests for leaves of absence are subject to Board approval. Any denial must be for good cause and the individual teacher shall receive a written statement of such reasons in the event a denial of a request is made.
- m. A teacher on leave of absence due to illness may return to employment prior to the expiration of the leave upon certification of fitness from their physician.
- n. A teacher on leave for illness or disability who fails to return at the expiration of the leave shall be considered as having resigned.

B. Personal Days

1. Each teacher will be allowed three (3) personal days of absence, non-cumulative, during each school year without loss of salary; within the limits of the restrictions placed upon the use of these days. Teachers are expected to use discretion in the application of these days but a teacher is not required to give a reason for the use of a personal day, except in the event of suspected misuse. The building principal must be notified at least 24 hours in advance of the expected absence. The 24-hour notice may be waived at the discretion of the building principal or their designee. Such days of absence shall not be deducted from the teacher's sick leave days. A teacher hired after the completion of the first semester will receive 1.5 personal days for the remainder of the school year.
2. Any unused personal time, at the end of each school year, will be added as hours to the teacher's sick leave total or paid out as remuneration pursuant to Article VIII Section A-2j.
3. Generally, personal days are provided for use of the teacher to conduct business that cannot be done outside of school time. Therefore, personal days are not to be used for vacations or to extend vacation time and/or holiday breaks. When it is necessary for personal days before or after a scheduled vacation period and/or holiday breaks, these days may be approved at the sole discretion of the Superintendent.

C. Bereavement Leave:

A teacher shall be entitled to a leave of up to five (5) days per occurrence in the event of the death of a family member, relative who resides in the same household as the teacher, or in the event of the death of the mother, father, child, husband, wife, sister, brother, grandfather, grandmother, grandchildren, mother-in-law, father-in-law, sister-in-law, brother-in-law, son-in-law, or daughter-in-law of the teacher or the grandfather or grandmother of the teacher's spouse significant other, or any IRS dependent. In the event of the death of any other member of the teacher's family or where such teacher is responsible for funeral arrangements or in the event that a teacher is asked to serve as a pallbearer, the superintendent may grant leave. Such days of absence shall not be deducted from a teachers personal/sick days. Teachers shall be entitled to a leave of up to (2) days for the death of a niece or nephew or aunt or uncle. Upon request, added leave time for travel, may be granted by the Superintendent.

D. Childcare Leaves:

1. Childcare leave without leave pay is available to all teachers. The length of the leave shall not exceed one (1) year, renewable at the discretion of the Board, and shall be for a minimum of one (1) semester.
2. In order to provide for continuity within the classroom between pupil and teacher, the teacher shall notify the Superintendent and the building principal in writing at least four (4) months prior to the expected date of the commencement of the leave so that necessary arrangements can be made to procure the teacher's replacement. The Superintendent, at their sole discretion, may waive any part of the notification period.

3. The ending date of childcare leaves shall conform to the beginning of a school year or semester. The teacher shall specify a prospective termination date of the childcare leave at the time of request for the leave.

E. Worker's Compensation Leave:

Any teacher who is absent because of an injury or disease compensable under the Michigan Worker's Compensation Law shall receive from the Board the difference between the disability benefits provided by Worker's Compensation and the sick leave benefits herein provided. To the extent that the Board makes payment to a teacher for that portion of their salary not reimbursed under Worker's Compensation, said partial payments shall be charged pro-rata against the teacher's accumulated sick leave days.

F. Association Officer Leave:

Tenured teachers who are elected officers of the National or State Association may, upon proper application, be given a leave of absence without pay or increment for a period of one (1) year.

G. Military Service Leave:

A leave of absence for military service shall be granted in accordance with state and federal law.

H. Public Office Leave:

The Board may grant a leave of absence without pay to any tenured teacher to campaign for, or serve in, a public office, but any leave granted under this paragraph shall be for a period of not less than one (1) semester nor more than two (2) consecutive years.

I. Sabbatical Leave:

The Board may, at its sole discretion, grant a sabbatical leave in accordance with the requirements of the Revised School Code, as stated:

1. Notice of intent to apply for leave of absence shall be made on or before April 15 of the school year previous to the school year for which leave of absence is requested. Request for such leave must be made on or before May 15. The total number of teachers on sabbatical leave in any one year shall not exceed three percent (3%) of the contractual staff.
2. Before beginning the sabbatical leave, the teacher shall enter into a contract to return to active service in the District for a period of at least one (1) year after the expiration of such leave. A teacher who does not fulfill this agreement shall repay to the Board within two (2) years the amount received by them during the sabbatical leave. This rule does not apply in cases where the teacher becomes incapacitated or in cases where the rule is waived by the Board.
3. Any teacher on sabbatical leave shall receive a salary equal to one-half (1/2) of the contractual amount they would have received had they remained. Such salary will be paid on the regular pay periods during the leave.
4. A teacher upon return from a sabbatical leave shall be restored to their position or to a position of like nature and status. Increments shall be added as if the teacher had been teaching in the school district during the time of sabbatical leave. Said teacher shall be entitled to participate in any other benefits that may be provided under the Master Agreement in accordance with State statutes.

J. Court Leave:

A teacher called for jury duty or subpoenaed as a witness in any court or administrative tribunal of the State, in a matter rising out of their employment with the District where the teacher or Association is not a party to the suit and specifically excluding arbitration and unfair labor practice cases, shall be compensated for the difference between the regular daily rate of pay and the pay received for the performance of such obligation. The Association and the Board shall be responsible for salaries of their own witnesses in unfair labor practices and arbitration cases except in situations where the witnesses elect to use unused personal leave time. If teachers use personal leave time to appear as witnesses, the Association agrees to pay the cost of substitute teachers.

K. Association Business Leave:

1. The Board agrees to grant the Association eight (8) days with pay each year for Association business. The Association will reimburse for the substitute pay and retirement costs. These days will be used at the discretion of the Association and shall not be used for purposes other than those having a direct benefit relationship with the Association or the District. Use of these days must be arranged no less than two (2) school days in advance of the leave date and directed to the Superintendent after approval of the Association President or their designee.
2. The Board additionally agrees to provide up to an additional eight (8) days to be utilized by the Association President or their designee, for the purpose of resolving Association/District issues. The Superintendent solely has the right to grant these additional days and the substitute pay and fringe benefits will be borne by the District. The purpose of this is to foster better relations between the Association and the District and to prevent small issues from becoming major problems.
3. The Association and the Board shall be responsible for salaries of their own witnesses in unfair labor practices and arbitration cases except in situations where the witnesses elect to use unused personal leave time. If teachers use personal leave time to appear as witnesses, the Association agrees to pay the cost of substitute teachers.

L. In-Service Education Leave:

Teachers may be allowed time to visit other classrooms within or out of the District for in-service education. Such visitations shall be subject to the approval of the building principal and the Superintendent. Said approval shall be without loss of pay or "leave days."

M. Family and Medical Leave Act (FMLA) of 1993:

1. Any full-time or part-time employee who meets the criteria under paragraph 2a below will be afforded up to twelve (12) continuous or intermittent weeks of unpaid leave in any twelve (12) month period for any of the following reasons:
 - a. The birth or adoption of a child or placement of a foster child in the employees care, regardless of the child's age.
 - b. Serious illness of an employee's spouse, parent or child who is under the age of eighteen (18) or handicapped.
 - c. Employee's own serious health condition.
 - d. Other reasons as specified under FMLA.
 2. FMLA includes the following:
 - a. Employees must have at least twelve (12) months of service (not necessarily consecutive) and must have worked at least 1,250 hours in the twelve (12)-month period immediately before the leave begins.
 - b. The District may require employees to take available paid sick leave and personal leave as part of their FMLA leave.
 - c. The District must guarantee employees the right to return to the previous or an equivalent position with no loss of benefits at the end of the FMLA leave. An exception may apply when an employee's return would cause substantial economic injury to the District.
 - d. Employees are entitled to continue medical and dental benefits under the group health plan while on FMLA leave under the same conditions as when they were on the job. The District must continue any group health insurance premium contributions during FMLA leave, but may recover such amounts if the employee fails to return to work for a reason other than disability.
 3. Employees are obligated to notify the District thirty (30) days in advance for birth, adoption, foster child or planned medical treatment when the need for the leave is foreseeable. However, when the leave is needed on an emergency basis, notice will not be required. Two (2) employed spouses may take a total of twelve (12) weeks for the birth or adoption of a child or the placement of a foster child or care for a sick parent. Employed spouses may not take FMLA leave concurrently for birth or adoption of a child or placement of a foster child or care of a sick parent.
- N. Upon return from any leave granted under this article, the teacher shall have their unused sick leave restored. During any leave a teacher, at their own expense, may continue their health or life insurance. Increments or other benefits shall not be allowed during the leave except as specified in Section I, Paragraph 4 above.
- O. It is understood that an approved paid leave of absence is exclusive. Employees on such leave may not supplant these days with other paid leave days for the duration of the initial leave. For example, but not limited to, an employee on approved paid medical leave may not take a bereavement leave during the duration of the initial medical leave.

- P. The Superintendent may request a physical or psychiatric examination of any teacher and/or require a statement from the treating physician. Whenever an examination is required, the request shall be accompanied by a written statement with valid reasons for the request. The teacher may select the physician who shall furnish a report of the examination to the Superintendent. If the examination and the records show that the teacher is not in proper condition to perform their duties, they may be required to take a leave of absence until they can furnish satisfactory evidence of their ability to return to work. All examinations shall be conducted by a qualified physician. All examinations requested by the Board are to be paid for by the District. The Board may require such teacher to submit to examination by a physician selected by the Board. If the two physicians' conclusions disagree, the parties shall mutually select a third physician.

ARTICLE IX – INSURANCE PROTECTION

A. Medical Insurance:

1. The Board of Education will create and maintain a Section 125 Cafeteria Plan that includes a Flexible Spending Account so that employee contributions will be made from pre-tax income, and payroll deducted in equal bi-weekly amounts. The Board of Education will pay 80% of the premium cost of the MESSA Package medical options described below, and provide 50% of the annual deductible funding to the employee's "Health Equity" (HEQ) Health Savings Account (HSA) for each medical benefit plan coverage year for employees enrolling in the ABC medical plan. Employees enrolled in an HSA may not contribute to an FSA in the same medical plan year. The deductible funding will be paid in four (4) equal parts. One quarter (25%) will be paid on the first business day in January, April, July, and September. Additionally, the Board shall vote annually, as required by PA 152, to maintain this 80/20 cost-sharing provision during the life of this Agreement.

Should the employee leave the district prior to completing the three (3) month deductible funding cycle they will need to repay the pro-rata amount through payroll deduction. If a payroll deduction is not possible the District may use all other legal measures at its disposal to recoup the funds.

2. Medical Coverage Benefits: Employees will have a choice of one (1) of the following four (4) plans effective January 1, 2025.
 - **MESSA Choices \$500/\$1,000, 10% Co-Insurance, 5-Tier Drug Card.
\$20 Office Visit: \$20 Specialist: \$25 Urgent Care: \$50 ER**
 - **MESSA ABC HSA Plan 1 \$1,650/\$3,300 with 0% Co-Insurance, 5-Tier Drug Card.**
 - **MESSA ABC HSA Plan 2 \$2,000/\$4,000 with 0% Co-Insurance, 5-Tier Drug Card.**
 - **MESSA Essentials \$375/\$750 with Co-Pay, 20% Co-Insurance, 5-Tier Drug Card.
\$25 Office Visit: \$50 Specialist: \$50 Urgent Care: \$200 ER**
3. Employees who do not elect medical coverage will not receive ancillary benefits. At the request of the District those employees not receiving medical insurance will provide proof of medical insurance coverage that meets the minimum value and coverage of the Affordable Care Act.

B. Ancillary Benefits:

1. All other non-medical Ancillary Benefits described shall be fully paid by the employer to all employees who take insurance.
 - Dental Insurance 80/80/80/80 \$1,000 annual max. \$1,000 Orthodontic maximum
 - Vision Insurance VSP 3G
 - Life Insurance \$50,000
 - AD & D Insurance \$50,000
 - Long Term Disability 66 2/3rds of max. salary, \$6,000 monthly max., social security offset-Single.

C. Optional Benefits:

1. All employees of the bargaining unit will be eligible during the open enrollment period, or during a qualifying event to sign up for Optional benefits. Selected Optional Benefits will be paid pre-tax through the 125 Cafeteria Plan.

D. Part Time Benefits:

1. Part Time teachers are defined as those who work less than one-hundred (100) percent of a full time teaching position. Since a part time position is less than one-hundred (100) percent of a full time position the district will pay for medical coverage, and ancillary insurance equal to the employees work status.

Example: An employee working forty (40) percent of the day will have forty (40) percent of their medical coverage, and ancillary insurance paid by the District.

2. In the event that an employee's full time status is involuntarily reduced to part time after the start of the school year the employee shall continue their full time benefits until the start of the next school year. Should an employee have their status reduced prior to the start of the school year they will be covered as stated in Article IX, D, 1.
3. The District at any time may "buy up" a part time employee's benefits to full time. Upon doing so the District will notify the employee and the union.

ARTICLE X - TEACHER EVALUATION

- A. Teacher evaluations currently correlate with state requirements and mandates. Should state requirements and/or mandates change, this will be renegotiated.
- B. Teachers who receive an effective or highly effective annual evaluation shall move up a step on the Appendix A Salary Schedule for the following school year. Those teachers whose step increase has no financial gain shall be paid a \$600 lump sum amount in September of the following school year.
- C. Teacher retirees who provide notice by April 1st of their retirement and are highly effective or effective on their final evaluation shall receive their stipend on their last pay of June.
- D. All district teachers, including all teachers of record, will be evaluated pursuant to the Danielson performance evaluation system, which is attached to this agreement as Appendix G. The District will measure student growth as 20% of the evaluation. For the 2024-2025 school year, student growth will be measured administered as it was for the 2023-2024 school year excluding the state assessments unless otherwise agreed. The parties will meet by April 15, 2025 to determine whether the metrics should be changed for subsequent contract years
- E. Student growth data from specific students with extreme circumstances that prohibit an accurate measure of growth will not be included in a Teacher's student growth component if written consent is provided by the Teacher's principal/evaluator.
- F. Prior to classroom observations, the teacher shall be provided a copy of the district evaluation form and an explanation of how the observation process works.
- G. If a tenured teacher has been rated "highly effective" or "effective" for three (3) consecutive year end evaluations, they shall be evaluated every third year thereafter. If a teacher is placed on an IDP, moves to a new assignment, or is subsequently rated below "effective" on a year-end evaluation, the Teacher may in the district's discretion be evaluated annually until receiving an "effective" rating for an additional three (3) consecutive years. Unless otherwise agreed, the District and Association shall meet prior to September 15 each contract year to comprise a list of tenured teachers and their evaluation status for the current school year.
- H. Probationary Teachers cannot challenge any aspect of the evaluation process, including observations, the IDP, the mid-year performance review or their assigned rating.
- I. An alleged violation of this Article is not subject to arbitration in the grievance process. An Arbitrator, however, has jurisdiction to consider a grievance filed under the grievance procedure by a tenured teacher who receives two (2) consecutive ratings of "needing support"

ARTICLE XI - MENTOR TEACHING

- A. Mentor Teacher shall be defined as a Master Teacher per Section 1526 of the School Code.
- B. Each bargaining unit member in their first three (3) years in the classroom shall be assigned a Mentor Teacher in accordance with state mandates. The Mentor Teacher shall be available to provide professional support, instruction and guidance in a non-threatening collegial fashion.
- C. A Mentor Teacher shall be assigned as follows:
 - 1. Participation as a Mentor Teacher shall be voluntary.
 - 2. The Administration shall immediately notify the Association of those members requiring the assignment of a mentor. The Administration shall assign mentors from a list of available teachers who are willing to participate in the program.
 - 3. Only one Mentee shall be assigned to one Mentor at a time.
 - 4. The Mentor Teacher assignment shall be for three (3) school years and subject to annual Administrative review in May.
 - 5. The Mentor Teacher shall be paid according to Appendix F.
- D. The Board and the Association will mutually agree upon Mentor Teacher guidelines. *See Appendix F for Mentor Teacher guidelines.
- E. As mandated by the state, Mentees shall be provided with a minimum of fifteen (15) days of professional development instruction during their first three (3) years of classroom teaching. In the event that this training is not scheduled within the parameters of the regular school day, the Mentee shall be compensated at the current professional development hourly rate (Article IV, Section I).

ARTICLE XII - RETIREMENT

- A. The Board shall notify the Association and all teachers before April 1 if a retirement incentive is to be offered for the current school year. However, if the Board decides after April 1 to offer a retirement incentive at the end of the current school year, all teachers who have previously stated their intentions to retire effective at the end of that school year shall be offered the same retirement incentive.
- B. Terminal leave payment will be paid to retiring teachers who have twenty (20) or more years of service to the district. A terminal leave payment of two hundred dollars (\$200.00) per year will be made for each year served teaching full-time in the District, or eighty dollars (\$80) for each unused sick day, whichever amount is greater. Teachers who taught part-time prior to July 1, 1995, will receive pro-rata amounts equal to the fraction of their years of part-time teaching in the bargaining unit.
- C. Unless the teacher is accepting a retirement incentive from the Board, a letter of resignation shall be submitted to the superintendent not later than April 1 of the retirement year in order to receive a terminal leave payment.

ARTICLE XIII - PROTECTION OF TEACHERS

- A. The Board recognizes its responsibility to give support and assistance to teachers with respect to maintenance, control and discipline of the classroom. Whenever it appears that a particular pupil requires the attention of special counselors, social workers, law enforcement personnel, physicians, or other professional persons, the Administration will take steps to assist the teacher with respect to such pupil.
- B. Any case of assault upon a teacher that had its inception in a school-centered problem shall be reported as soon as possible, in writing, to the Superintendent and the appropriate building principal. In the event of such an assault, the teacher involved may request assistance of the Board in the matter. These requests shall be made in writing to the Superintendent.
- C. The Board shall, upon recommendation of the Superintendent, reimburse a teacher for any damage or destruction caused by a student to or theft of clothing, personal property, or personal vehicle while such teacher is on duty in the school, on school property, or on school-related functions, up to \$500.00 and not covered by the teachers insurance, unless such loss or damage is caused by the negligence of the teacher or by an act of God. Each teacher will be provided with the ability to lock away personal items within the teacher's classroom or office. Requests for reimbursement shall be submitted to the Superintendent in writing.

ARTICLE XIV - WAIVER CLAUSE

The parties acknowledge that during the negotiations which resulted in this Agreement each had the unlimited right and opportunity to make demands and proposals with respect to any subject or matter not removed by law from the area of collective bargaining and that the understandings and agreements arrived at by the parties after the exercise of that right and opportunity are set forth in this Agreement. Therefore, the Board and the Association, for the life of this Agreement, each voluntarily and unqualifiedly waives the right, and each agrees that the other shall not be obligated to bargain collectively with respect to any subject or matter referred to or covered by this Agreement and with respect to any subject or matter not specifically referred to or covered in this Agreement, even though such subject or matter may not have been within the knowledge and contemplation of either or both of the parties at the time that they negotiated or signed this Agreement.

ARTICLE XV - DISCIPLINE AND DISCHARGE AS

PER BOARD POLICY SECTION 3139-3140

- A. For tenured teachers, consistent with the Teachers' Tenure Act, discipline may only be issued for reasons that are not arbitrary or capricious and the parties subscribe to the concept of progressive discipline as required by law. The district reserves the right to apply disciplinary measures consistent with the severity of the infraction.
- B. All discipline will be in writing and placed in an individual's personnel file, and the teacher will be forwarded a copy. A teacher may attach a rebuttal in a personnel file up to five sheets of 8.5 x 11 in paper. Non disciplinary directives will not be placed in an individual's personnel file.
- C. Probationary teachers cannot grieve discipline. Tenured teachers may only grieve discipline up to arbitration. This article does not limit a tenured teacher's right to appeal a "demotion" or "termination" pursuant to the protections outlined in the Michigan Teachers Tenure Act.
- D. Employees shall have full Weingarten Rights. New hires and teachers will be notified of their Weingarten Rights annually.

ARTICLE XVI - PROFESSIONAL RESPONSIBILITIES FOR CONTINUATION OF THE EDUCATION PROGRAM

The Association and the Board recognize that the cessation or interruption of professional services by teachers as defined in current state law is contrary to law and public policy. The Board and the Association agree, in keeping with the high standards of the teaching profession, that all differences between them shall be resolved by the orderly procedures provided herein, without interruption of the school program. Accordingly, the Association and the teachers agree that during the term of this Agreement they will not direct, instigate, participate in, encourage or support any cessation or interruption of professional services by any teacher or group of teachers and pledge themselves to the purpose of insuring continuation of the educational program. If the Association disclaims in writing to the Board any responsibility for any cessation of professional services and directs its members in writing to resume their normal duties, it shall not be liable in any way. Teachers who participate in any such act may be disciplined or discharged.

ARTICLE XVII - GRIEVANCE PROCEDURE

- A. A grievance shall be an alleged violation of the expressed terms of this agreement. The following matters shall not be the basis of any grievance.
 - 1. The termination of services of or failure to re-employ or discipline or discharge any teacher.
 - 2. The termination of services, hiring or failure to re-employ any teacher to a position on the extra duty schedule, may be appealed to the superintendent level (Step 3).
 - 3. Those areas for which the Tenure Act prescribes a procedure or authorizes a remedy (discharge and/or demotion).
 - 4. The evaluations, lay-off and recall, assignment of teacher.
- B. Written grievances (see Appendix D for form) as required herein shall contain the following:
 - 1. It shall be signed by the grievant or grievants. Association grievances shall be signed by the Association President.
 - 2. It shall be specific
 - 3. It shall contain a synopsis of the facts giving rise to the alleged violation.
 - 4. It shall cite the section or subsections of this agreement alleged to have been violated.
 - 5. It shall contain the date of the alleged violation.
 - 6. It shall specify the relief requested.
- C. Any written grievance not substantially in accordance with the above requirements may be rejected as improper. Such rejection shall not extend the limitations hereinafter set forth.
- D. The purpose of this article is to secure a settlement of a grievance as rapidly as possible. If a grievance is not processed within the required timelines by the Association, it shall be considered withdrawn and processed no further. If the Board does not respond to the grievance within the required timelines, the grievance shall advance to the next level. The procedures herein stated shall be the sole and exclusive remedy for the handling of grievances. Both parties agree that the grievance proceeding shall be kept as confidential as may be appropriate at each step of the procedure.
- E. Step One: Supervisor - Informal Level:

In the event that a teacher or the Association believes that a grievable incident has occurred, the teacher or the Association shall request a meeting with the supervisor within ten (10) working days of the occurrence of such grievable incident or knowledge of the occurrence. If the supervisor fails to resolve the grievance or refuses to provide such meeting within ten (10) working days of the request, the claim or complaint may be formalized in writing as provided hereunder.

F. Step Two: Supervisor - Formal Written Level:

If the grievance is not resolved in Step One, the grievance may be formalized as a Formal Written Grievance (see Appendix D for form). A Formal Written Grievance shall be submitted within ten (10) working days of the meeting between the supervisor and the affected teacher or within twenty (20) working days of the occurrence if no Step One meeting is held. A copy of the grievance shall be submitted to the Association and the affected supervisor. The immediate supervisor shall within ten (10) working days of receipt of a written grievance render a written decision. A copy of this decision shall be forwarded to the grievant and the Association.

G. Step Three: Superintendent Level:

If the grievance is not resolved at Step Two or if the supervisor has not made a disposition within ten (10) working days of receipt of the Formal Written Grievance, the grievant or the Association shall transmit the Formal Written Grievance to the superintendent within ten (10) working days. The superintendent (or their designee) shall meet with the parties on the grievance within ten (10) working days after the grievance has been submitted. The superintendent shall, within ten (10) working days of the conclusion of the meeting, render a written decision thereof and send copies to the supervisor, grievant, and the Association.

H. Step Four: (Optional) Grievance Resolution Through Mediation

If the grievant is not satisfied with the disposition of the grievance at Step Three, or if the superintendent has not made a disposition within ten (10) working days of the meeting, the Association may file the grievance to mediation through the Michigan Employment Relations Commission (MERC) within ten (10) working days following the receipt of the Step III Superintendent response or of the date the response was due, from the Superintendent or designee. A copy of the filing will be provided to the District by the Association. If satisfactory resolution is achieved through mediation, the resolution shall be final and binding upon the parties. If no satisfactory resolution can be reached, either side may terminate mediation through written notification of the other party.

I. Step Five: Arbitration:

If the grievance is not satisfactorily resolved at Step Four, the Association may, within ten (10) working days of the date of receipt of the Board's final disposition of the grievance or written notification of termination of the mediation by either party, submit an appeal for binding arbitration to the American Arbitration Association (AAA). The rules of the AAA shall govern the selection of the arbitrator. Should the teacher fail to institute the grievance within the time limits specified, all further proceedings shall be barred. The time limits specified herein may only be extended by mutual written and signed agreement.

J. Step Six: Pre-hearing:

Neither party to the grievance may raise a new defense or grounds at Step Five which have not been raised previously or disclosed at other written levels. Each party shall submit to the other party not less than thirty (30) working days prior to the Arbitration hearing, a pre-hearing statement alleging facts, grounds and defenses which will be raised at the hearing. A conference will be held at that time in an attempt to settle the grievance.

- K. Powers of the Arbitrator - It shall be the function of the arbitrator and he/she shall be empowered, except as their powers are limited below, after due investigation, to make a decision in cases of alleged violation of the specific articles and sections of this Agreement:
1. They shall have no power to add to, subtract from, disregard, alter, or modify any of the terms of this agreement.
 2. They shall have no power to establish salary scales or change any salary.
 3. They shall have no power to change any practice, policy, or rule of the School Board nor to substitute their judgment for that of the Board as to the reasonableness of any such practice, policy, rule, or any action taken by the Board. Their powers shall be limited to deciding whether the Board has violated the express articles or sections of this Agreement; and they shall not imply obligations and conditions binding upon the Board from this Agreement, it being understood that any matter not specifically set forth herein remains within the reserved rights of the Board.
 4. They shall have no power to decide any question that which, under this Agreement, is within the responsibility of management to decide. In rendering decisions, an arbitrator shall give due regard to the responsibility of management and shall so construe the Agreement so that there will be no interference with such responsibilities, except as they may be specifically conditioned by this Agreement.
 5. If either party disputes the arbitrability of any grievance under the terms of this Agreement, the arbitrator shall rule in writing upon arbitrability before proceeding to the merits of the case.
 6. The fees and expenses of the arbitration shall be shared equally by the Board and the Association. All other expenses shall be borne by the party incurring them, and neither party shall be responsible for the expense of witnesses called by the other. Teachers who appear as witnesses may use unused personal days.
- L. Both parties agree to be bound by the award of the arbitrator, subject only to legal remedies afforded by courts of competent jurisdiction.
- M. Claims for Back Pay - All grievances must be filed in writing within ten (10) working days from the time the alleged violation was to have occurred. The Board shall not be required to pay back wages accruing and due an individual teacher covering more than forty-five (45) work days.
1. All claims for back wages shall be limited to the amount of wages that the employee would otherwise have earned, less any compensation that he may have received from any source during the period of the back pay.
 2. No decision in any one case shall require a retroactive wage adjustment in any other case.
- N. Any grievance occurring during the period between the termination date of this Agreement and the effective date of a new agreement shall not be processed. Any grievance which arose prior to the effective date of this Agreement shall not be processed.
- O. Working days shall be defined as those days the central administrative offices are open for business.

ARTICLE XVIII - MISCELLANEOUS PROVISIONS

- A. This Agreement shall supersede any rules, regulations or practices of the School Board which shall be contrary to, or inconsistent with, its terms. It shall likewise supersede any contrary or inconsistent terms contained in any individual teacher contracts heretofore in effect. All future individual teacher contracts shall be made subject to the terms of this Agreement. The provisions of this Agreement shall be incorporated into and be considered part of the established policies of the Board.
- B. This Agreement shall constitute the full and complete commitments between both parties and may be altered, changed, added to, deleted from or modified only through the voluntary, mutual consent of both parties in written form.
- C. If any provision of this Agreement or any application of the Agreement to any teacher or group of teachers shall be found contrary to law, then such provision or application shall not be deemed valid and subsisting except to the extent permitted by law, but all other provisions or applications shall continue in full force and effect. In the event laws change affecting current Agreement and/or board policy, both parties agree to bargain affected issues in good faith.
- D. The Board shall have the final determination in setting the yearly school calendar. The Administration shall bargain with the Association prior to the superintendent's recommendation of the calendar to the Board.
- E. If the State of Michigan continues to penalize districts not making up inclement weather days, the following plan will be used for these make ups. In accordance with the Revised State School Aid Act 94 of 1979, Section 388.1701 (4), the first 30 hours for which pupil instruction is not provided because of conditions not within the control of school authorities, such as severe storms, fires, epidemics, or health conditions as defined by the city, county, or state health authorities, shall be counted as hours of pupil instruction. This will be done with no additional pay for teachers. When all district schools are closed because of inclement weather or an act of God, teachers are not required or expected to report for work. When an individual building is closed, teachers in that building may be required to report for work.
- F. If inclement weather days occur causing the district to make up hours of instruction, the School Board agrees to negotiate with the Association as to how that time will be made up.
- G. If an Emergency Financial Manager is appointed by the state under PA4 of 2011, Fiscal Accountability Act, the Emergency Manager may reject, modify, or terminate the collective bargaining agreement in their sole discretion. This authority is a prohibited subject of bargaining PERA.
- H. It shall be the responsibility of each teacher to present and maintain the certification as required by the State of Michigan.
- I. The Board will provide advance notification, verbally or through written communication, to the teacher should their personnel file be requested under FOIA. Such advance notice provision shall not prevent the district from complying with time limits set forth in the Act. The employee will be provided the opportunity to review the contents before the release of the file and may request Association representation in this review. Information released will comply with FOIA and the Bullard-Plawecki Employee Right to Know Act.

ARTICLE XIX - DURATION AND RATIFICATION OF AGREEMENT

- A. This Agreement shall become effective, July 1, 2024 and shall continue in full force and effect until June 30, 2027. Upon written notice given after January 1, 2027, the parties agree to negotiate over a successor agreement.
- B. It is recognized that no final agreement between the parties may be executed without ratification by the Board and by the Association, but the parties mutually pledge that representatives selected by each shall be clothed with all necessary power and authority to make proposals, consider proposals, and make concessions in the course of negotiations or bargaining, subject only to such ultimate ratification.
- C. Any article or section of the Agreement may be re-opened during the life of the Agreement upon mutual agreement of the Association and the Board.
- D. This Agreement has been ratified by the Board and by the Association.

IN WITNESS WHEREOF the parties have caused this Agreement to be executed by their authorized representatives as of November 11, 2024.

**FOR THE COLDWATER
EDUCATION ASSOCIATION**


Name _____
MEA UNION DIRECTOR 400
ITS _____
11-14-2024
Date _____

**FOR COLDWATER
COMMUNITY SCHOOLS**


Name _____
Superintendent
ITS _____
11-15-2024
Date _____

APPENDIX A SALARY SCHEDULE

- A. It is understood that college or university credit hours determine placement on the various salary schedule categories. These categories will be:
1. Bachelor's Degree
 2. Bachelor's Degree plus 20 hours
 3. Master's Degree
 4. Master's Degree plus 15 hours
- B. For placement on the Bachelor's degree plus twenty (20) scale, the teacher must be a holder of twenty (20) semester or thirty (30) term hours of graduate credit beyond the Bachelor's degree. Placement may be implemented during the contractual year subject to the teacher submitting an appropriate official transcript of records from the designated college or university granting graduate degrees.
- C. For placement on the Master's degree scale, the teacher must be a holder of the Master's degree in an education-related field. Placement may be implemented during the contractual year subject to the teacher submitting an appropriate official transcript of record from an institution granting graduate degrees.
- D. For placement on the Master's degree plus fifteen (15) scale, the teacher must be a holder of fifteen (15) semester or twenty-four (24) term hours of graduate credit beyond the Master's degree. Placement may be implemented during the contractual year subject to the teacher submitting an appropriate official transcript of record from a designated college or university granting graduate degrees. Master's level courses must be completed after the attainment of the Master's Degree to be compensated under this provision. Employees who have taken graduate level courses beyond those required for their Master's Degree should compile a list and submit to the Superintendent for compensation consideration to be advanced to the MA plus schedule.
- E. Teachers who have begun employment after the start of the school year shall qualify for one-half year of service credit if at least sixty (60) teaching days are served during said contract year in no more than two distinct segments of at least thirty-five (35) days each. The teacher will receive a full year of service credit if at least one hundred sixty (160) teaching days are served in said contract year. At the discretion of the teacher, days served may include sick-leave days.
- F. Undergraduate credits will be accepted for advancement when the following steps are followed:
1. prior approval of the class is given by the superintendent;
 2. the class is directly related to their content area as determined by the principal; and
 3. all grade records are presented for the teacher's member's personnel file.
- G. To qualify for placement on the BA plus 20, Master's, and Master's plus 15 scales, all required course work must be complete and submitted to the Superintendent by September 1st and January 15th to advance on the appropriate salary schedule.

COLDWATER COMMUNITY SCHOOLS SALARY SCHEDULE
2024-2025 SCHOOL YEAR
 3% Increase

Step	BA		BA+20		MA		MA+15
1	\$ 47,385		\$ 49,740		\$ 52,097		\$ 54,454
2	\$ 49,740		\$ 52,097		\$ 54,454		\$ 56,815
3	\$ 52,097		\$ 54,454		\$ 56,815		\$ 59,171
4	\$ 54,454		\$ 56,815		\$ 59,171		\$ 61,526
5	\$ 56,815		\$ 59,171		\$ 61,526		\$ 63,886
6	\$ 59,171		\$ 61,526		\$ 63,886		\$ 66,240
7	\$ 61,526		\$ 63,886		\$ 66,240		\$ 68,598
8	\$ 63,886		\$ 66,240		\$ 68,598		\$ 70,961
9	\$ 66,240		\$ 68,598		\$ 70,961		\$ 73,312
10	\$ 68,598		\$ 70,961		\$ 73,312		\$ 75,672
11	\$ 70,961		\$ 73,312		\$ 75,672		\$ 78,034
12	\$ 71,669		\$ 75,672		\$ 78,034		\$ 80,389
13	\$ 71,669		\$ 76,430		\$ 80,389		\$ 82,742
14	\$ 71,669		\$ 76,430		\$ 81,190		\$ 83,573
15	\$ 71,669		\$ 76,430		\$ 81,190		\$ 83,573
16	\$ 73,460		\$ 78,340		\$ 83,220		\$ 85,662
17	\$ 73,640		\$ 78,531		\$ 83,422		\$ 85,871
18	\$ 73,999		\$ 78,914		\$ 83,829		\$ 86,289

COLDWATER COMMUNITY SCHOOLS SALARY SCHEDULE
2025-2026 SCHOOL YEAR
2% Increase

Step	BA		BA+20		MA		MA+15
1	\$ 48,332		\$ 50,734		\$ 53,139		\$ 55,543
2	\$ 50,734		\$ 53,139		\$ 55,543		\$ 57,952
3	\$ 53,139		\$ 55,543		\$ 57,952		\$ 60,355
4	\$ 55,543		\$ 57,952		\$ 60,355		\$ 62,757
5	\$ 57,952		\$ 60,355		\$ 62,757		\$ 65,164
6	\$ 60,355		\$ 62,757		\$ 65,164		\$ 67,565
7	\$ 62,757		\$ 65,164		\$ 67,565		\$ 69,970
8	\$ 65,164		\$ 67,565		\$ 69,970		\$ 72,380
9	\$ 67,565		\$ 69,970		\$ 72,380		\$ 74,778
10	\$ 69,970		\$ 72,380		\$ 74,778		\$ 77,185
11	\$ 72,380		\$ 74,778		\$ 77,185		\$ 79,595
12	\$ 73,103		\$ 77,185		\$ 79,595		\$ 81,997
13	\$ 73,103		\$ 77,958		\$ 81,997		\$ 84,397
14	\$ 73,103		\$ 77,958		\$ 82,814		\$ 85,244
15	\$ 73,103		\$ 77,958		\$ 82,814		\$ 85,244
16	\$ 74,930		\$ 79,907		\$ 84,885		\$ 87,376
17	\$ 75,113		\$ 80,102		\$ 85,090		\$ 87,589
18	\$ 75,478		\$ 80,492		\$ 85,505		\$ 88,015

COLDWATER COMMUNITY SCHOOLS SALARY SCHEDULE
2026-2027 SCHOOL YEAR
 2% Increase

Step	BA		BA+20		MA		MA+15
1	\$ 49,299		\$ 51,749		\$ 54,202		\$ 56,654
2	\$ 51,749		\$ 54,202		\$ 56,654		\$ 59,111
3	\$ 54,202		\$ 56,654		\$ 59,111		\$ 61,562
4	\$ 56,654		\$ 59,111		\$ 61,562		\$ 64,012
5	\$ 59,111		\$ 61,562		\$ 64,012		\$ 66,467
6	\$ 61,562		\$ 64,012		\$ 66,467		\$ 68,916
7	\$ 64,012		\$ 66,467		\$ 68,916		\$ 71,370
8	\$ 66,467		\$ 68,916		\$ 71,370		\$ 73,827
9	\$ 68,916		\$ 71,370		\$ 73,827		\$ 76,274
10	\$ 71,370		\$ 73,827		\$ 76,274		\$ 78,729
11	\$ 73,827		\$ 76,274		\$ 78,729		\$ 81,186
12	\$ 74,565		\$ 78,729		\$ 81,186		\$ 83,636
13	\$ 74,565		\$ 79,517		\$ 83,636		\$ 86,085
14	\$ 74,565		\$ 79,517		\$ 84,470		\$ 86,949
15	\$ 74,565		\$ 79,517		\$ 84,470		\$ 86,949
16	\$ 76,428		\$ 81,505		\$ 86,583		\$ 89,123
17	\$ 76,615		\$ 81,704		\$ 86,792		\$ 89,340
18	\$ 76,988		\$ 82,102		\$ 87,216		\$ 89,775

APPENDIX B SCHEDULE OF REMUNERATION FOR ATHLETIC EXTRA-DUTY ASSIGNMENTS

- A. The payments shall be per the schedule below.
- B. Positions listed shall be posted, filled, or left vacant at the sole discretion of the Board. The following criteria will be observed:
1. All posted positions shall be made available to teachers and outside candidates who meet the posted qualifications. The most qualified candidate shall be selected based on specified criteria included in the language of the posted position. The Varsity coach in that sport, in conjunction with the Athletic Director, will recommend assignment of assistant coaches as long as the above criteria are followed.
 2. All employees holding an Appendix B position may be evaluated on an annual basis and may be terminated for any reason satisfactory to the employer. All Appendix B extra-duty positions are non-tenured.

**If a coach returns to a previous or lesser position within ten (10) years, he/she will not be considered a new hire.*

Position: Schedule B	1st Step	2nd Step	3rd Step	Step 4	Step 5	Step 6
Head Football Coach	6000	6383	6790	7223	7684	8174
Assistant Football	3600	3830	4074	4334	4610	4905
Legg Football	2367	2518	2679	2850	3032	3225
Head Basketball Coach	6000	6383	6790	7223	7684	8174
Assistant Basketball	3600	3830	4074	4334	4610	4905
Legg Basketball	2367	2518	2679	2850	3032	3225
Head Wrestling Coach	4421	4703	5003	5322	5662	6023
Assistant Wrestling	2653	2822	3002	3193	3397	3614
Legg Wrestling	1737	1848	1966	2091	2225	2367
Head Baseball	4421	4703	5003	5322	5662	6023
Assistant Baseball	2653	2822	3002	3193	3397	3614
Head Softball	4421	4703	5003	5322	5662	6023
Assistant Softball	2653	2822	3002	3193	3397	3614
Head Track	4104	4366	4645	4941	5257	5592
Assistant Track	2462	2620	2787	2965	3154	3355
Legg Track	1737	1848	1966	2091	2225	2367
Head Volleyball Coach	3980	4234	4504	4791	5097	5422
Assistant Volleyball Coach	2388	2540	2702	2875	3058	3253
Legg Volleyball	1737	1848	1966	2091	2225	2367
Head Cross Country Coach	3158	3360	3574	3802	4045	4303
Legg Cross Country Coach	1421	1512	1608	1705	1808	1916

Head Tennis Coach	3158	3360	3574	3802	4045	4303	Split Between Coaches
Assistant Tennis	1895	2016	2144	2281	2427	2582	
Legg Tennis	1262	1343	1429	1520	1617	1720	
Head Golf Coach	2842	3023	3216	3421	3639	3872	
Head Soccer Coach	3158	3360	3574	3802	4045	4303	
Assistant Soccer	1895	2016	2144	2281	2427	2582	
Legg Athletic Coordinator	3633	3865	4112	4374	4653	4950	
Head Spirit	2051	2182	2321	2469	2627	2794	
Assistant Spirit	1231	1309	1393	1481	1576	1677	
Head Gymnastics	3792	4034	4291	4557	4831	5122	
Assistant Gymnastics	2367	2518	2679	2840	3010	3191	
Head Bowling	2842	3023	3574	3802	4045	4303	
Head Swimming/ Dive Coach	6000	6383	6790	7223	7684	8174	

APPENDIX C SCHEDULE OF REMUNERATION FOR NON-ATHLETIC EXTRA-DUTY ASSIGNMENTS

- A. The payments shall be per the schedule below.
- B. Positions listed shall be posted, filled or left vacant at the sole discretion of the Board. The following criteria will be observed:
1. All posted positions shall be made available to teachers and outside candidates who meet the posted qualifications. The most qualified candidate shall be selected based on specified criteria included in the language of the posted position. The Varsity coach in that sport, in conjunction with the Athletic Director, will recommend assignment of assistant coaches as long as the above criteria are followed.
 2. All employees holding an Appendix C position will be evaluated on an annual basis and may be terminated for any reason satisfactory to the employer. All Appendix C extra-duty positions are non-tenured.

Position: Schedule C	1st Step	2nd Step	3rd Step	Step 4	Step 5	Step 6
Marching Band	3158	3360	3574	3802	4045	4303
Marching Band Assistant	1579	1680	1787	1901	2022	2151
Pep Band	1325	1410	1500	1596	1698	1806
Flag Corp	1209	1286	1368	1455	1548	1647
HS Musical	1944	2068	2200	2340	2490	2649
CHS Instrumental (Solo/Ensemble)	884	940	1000	1064	1132	1204
Legg Instrumental	884	940	1000	1064	1132	1204
HS Yearbook-if no scheduled class	1579	1680	1787	1901	2022	2151
Legg Yearbook-if not scheduled class	1579	1680	1787	1901	2022	2151
Alternative Yearbook	788	838	892	949	1009	1074
Balladiers-if no scheduled class	1367	1518	1679	1786	1900	2021
Vocal Music CHS	884	940	1000	1064	1132	1204
Vocal Music LMS	884	940	1000	1064	1132	1204
Mirror-if no scheduled class	1579	1680	1787	1901	2022	2151
Student Council Advisor CHS	2209	2350	2500	2660	2829	3010
Student Council Advisor LMS	1060	1128	1200	1277	1358	1445
MS Science Olympiad	947	1007	1071	1139	1212	1289
Elementary Science Olympiad	947	1007	1071	1139	1212	1289
CHS Curriculum Chairs	1149	1222	1300	1383	1471	1565
LMS Curriuclum Chairs	1149	1222	1300	1383	1471	1565
Elementary Curriculum Chairs	1149	1222	1300	1383	1471	1565
National Honor Society	884	940	1000	1064	1132	1204
National Art Honor Society	884	940	1000	1064	1132	1204
Youth in Government-CHS	1447	1507	1571	1671	1778	1891

Youth in Government-LMS	1133	1173	1216	1294	1376	1464
Senior Class Advisor	1750					
Junior Class Advisor	1600					
Sophomore Class Advisor	1450					
Freshmen Class Advisor	1300					
Percussion Instructor	1209	1350	1500	1596	1698	1806

*****High School – no stipend if it's a scheduled class***

*****Legg Yearbook – no stipend if it's a scheduled class***

*****Balladiers – no stipend if it's a scheduled class.***

*****Mirror – no stipend if it's a scheduled class.***

****** Mentor Teacher – See Article F***

**APPENDIX D: COLDWATER EDUCATION ASSOCIATION Coldwater Community
Schools Grievance Report Form**

Grievance # _____

Name of Grievant _____ Date Filed _____

Building _____ Assignment _____

STEP 1

A. Date Cause or Knowledge of Grievance Occurred _____

B. Date of Request for Informal Meeting with Supervisor _____

C. Date of Informal Meeting with Supervisor _____

STEP 2

A.

1. Statement of Grievance

2. Article of the Agreement violated

3. Relief Sought

Signature:

Date:

B. Disposition of Supervisor/Principal _____

Signature:

Date:

C. Disposition of Grievant and/or Association _____

Signature:

Date:

*If additional space is needed for Statement of Grievance (Step 2, Section A), attach additional sheet.

STEP 3

A. Date received by Superintendent or Designee _____

B. Disposition by Superintendent or Designee _____

Signature: _____

Date: _____

C. Position of Grievant and/or Association _____

Signature: _____

Date: _____

STEP 4

A. Date Grievance Filed to Mediation _____

B. Recommendation of Mediation or Date of Termination of Mediation _____

Signature: _____

Date: _____

C. Position of Grievant and or Association _____

Signature: _____

Date: _____

STEP 5

A. Date Submitted to Arbitration _____

B. Disposition and Award of Arbitration _____

Signature: _____

Date: _____

APPENDIX E: Coldwater Community Schools Employee Absence Form

If not submitted within 2 days of return to work, the employee will NOT be paid for those days.

Submit all three copies of this report to your Principal or Supervisor, who will then submit them to the Superintendent. Copies will be distributed as follows: white copy – to the Payroll Department yellow copy – to the Principal or Supervisor and pink copy – to the Employee.

Today's Date: _

Employee Name: _____

Employee #: _____ Hours in Normal Day: _____

I was absent _____ request absence __ as follows:

No. of days: _____ Dates: _____ a.m. _____ p.m. _____ **Reason for**

absence: Requires Principal Signature: Requires ASC Approval: Personal

Illness _____ **Absent without pay _____

Family Illness _____ **Vacation _____

Personal Business _____ **Conference _____ (24 hours advance notice: CEA)

(Approval: CESPA) **Personal Business _____ (To extend vacation or holiday)

Bereavement _____ Relationship? _____ **Athletics _____ Jury Duty _____

**Explanation required: _____

Personal business may not be used for vacation, outside paid employment or before or after a holiday.

_____ I understand that falsification or abuse of leave may result in denial of the leave, or discipline.

Approved _____

Employee Signature Not Approved _____ With Salary _

Principal or Supervisor

Athletic Director (if

relevant) Without Salary _____

Superintendent

APPENDIX F: Mentor Guidelines

Goal: To facilitate and encourage professional growth so a smooth and positive transition can occur into our school community.

What is a mentor?

A mentor is...

- A professional resource and confidant
- A coach
- A good listener
- Willing to learn
- A good role model
- A building block for professional development

A mentor is not...

- An evaluator
- There to pass judgment
- A negative voice

Program Outline:

Previously Tenured Staff:

- Two year participant in program, or until tenure received
- Minimum of 1 meeting per month; Mentor pay: maximum of \$500 (at rate of \$28/hour)
 - Submit hours by June 1st (and tracking documentation)
- Year 1:
 - Develop IDP: personal, professional, and PLC growth goals
 - DnA
 - Stages
 - Building mechanics: supply orders, building personnel, lunch procedures, PLC format, staff meetings, safety drills, copier, phone system, busing, building tour
 - Building programs: ie: Backpack Buddies, Focus hour, special events, etc...
- Year 2:
 - Continue IDP and refine building and program knowledge

New Teachers:

- Three year participant in the program
- Year 1:
- Minimum of 1 meeting per month (up to 1 hour minimum). Mentor pay: maximum of \$500 (at the rate of \$28/hour), meetings must happen outside the contract day.
Recommended schedule:
 - Submit hours by June 1 (and tracking documentation)
 - 1 mentor meeting in September/October
 - Create IDP, housekeeping, set personal and professional growth goals
 - 1 mentor meeting before parent-teacher conferences
 - How to prepare for conferences, report card procedures, data collection

- 1 mentor meeting before holiday vacation
 - How not to lose momentum after the holidays
 - 1 mentor meeting in May
 - Supply orders, closing the year
- Year 2: Minimum of 1 meeting per month (up to 1 hour minimum); stipulations the same as above.
 - Continue IDP--modify and expand
 - Professional and personal growth goals
 - Data collection, analysis, and collaboration with peers
- Year 3: Minimum of 1 meeting per month((up to 1 hour minimum); stipulations the same as above.
 - Continue IDP--modify and expand
 - Professional and personal growth goals
 - Data collection, analysis, and collaboration with peers

APPENDIX G: Danielson Evaluation Tool

2024-25
Coldwater Community Schools Calendar
180 Student Days - 1098 Hours - 5 Professional
Days **Please Print In Color if Possible!**

180

AUGUST

M	T	W	T	F
			1	2
5	6	7	8	9
12	13	14	15	16
19	20	21	22	23
26	27	28	29	NS

SEPTEMBER

M	T	W	T	F
NS	3	4	5	6
9	10	11	12	13
16	17	18	19	20
23	24	25	26	27
30				

OCTOBER

M	T	W	T	F
	1	2	3	4
7	8	9	10	11
14	15	16	17	18
21	22	23	24	25
28	29	30	31	

NOVEMBER

M	T	W	T	F
				1
4	5	6	7	8
11	12	13	14	15
18	19	20	21	22
25	26	NS	NS	NS

DECEMBER

M	T	W	T	F
2	3	4	5	6
9	10	11	12	13
16	17	18	19	20
NS	NS	NS	NS	NS
NS	NS			

JANUARY

M	T	W	T	F
		NS	NS	NS
6	7	8	9	10
13	14	15	16	17
20	21	22	23	24
27	28	29	30	31

FEBRUARY

M	T	W	T	F
3	4	5	6	7
10	11	12	13	14
NS	18	19	20	21
24	25	26	27	28

MARCH

M	T	W	T	F
3	4	5	6	7
10	11	12	13	14
17	18	19	20	21
NS	NS	NS	NS	NS
31				

APRIL

M	T	W	T	F
	1	2	3	4
7	8	9	10	11
14	15	16	17	NS
21	22	23	24	25
28	29	30		

MAY

M	T	W	T	F
			1	2
5	6	7	8	9
12	13	14	15	16
19	20	21	22	23
NS	27	28	29	30

JUNE

M	T	W	T	F
2	3	4	5	6
9	10	11	12	13
16	17	18	19	20
23	24	25	26	27

September 2

Labor Day

November 28

Thanksgiving Day

December 25

Christmas Day

January 1

New Year's Day

January 20

MLK Jr Day

February 17

Ag/Presidents Day

April 18

Good Friday

May 26

Memorial Day

August 12 Teacher Work Day
First Student Day - August 19
August 13, 14, 15; October 11; January 20 - Prof. Dev. Days
February 14 - 1/2 Day of School Mid-Winter Break
February 17 - No School Farmer's Day
March 24-March 28 - Spring Break
December 19, 20 - 1/2 day students, 1/2 day Record's Day
May 29,30 - 1/2 day students, 1/2 day Record's Day
NS - No School - Holiday/Scheduled Break
October 22 Evening Conferences
October 23 Half day for Students/ Afternoon & Evening Conferences
Early Release

LETTER OF AGREEMENT
INSURANCE CHANGES 2025

This Letter of Agreement is entered into between COLDWATER COMMUNITY SCHOOL DISTRICT (the "District") and COLDWATER EDUCATION ASSOCIATION/MEA/NEA (the "Association").

The District and the Association agree to the following changes to medical insurance plans for the 2024-2025 school year. The District will create an open enrollment period, only IRS qualifying insurable events may trigger changes to medical and ancillary plans after the close of open enrollment.

The Medical Plan choices for the 2025 Calendar year shall be as follows.

- CHOICES \$500/\$1,000, 10% Co-Insurance, 5-Tier Drug Card.
- ABC 1 HSA \$1,650/\$3,300, 0% Co-Insurance, 5-Tier Drug Card.
- ABC 2 HSA \$2,000/\$4,000, 0% Co-Insurance, 5-Tier Drug Card
- Essentials by MESSA \$375/\$750, 20% Co-Insurance, 5-Tier Drug Card.

Starting January 1, 2025 the District will pay 100% of the cost of VSP 3G and discontinue the previous VSP 3 coverage.

By entering into this Letter of Agreement, neither the District nor Association amend, modify, waive, or qualify any other provisions, conditions, rights or duties in their current or any successor collective bargaining agreement between them, except as specifically waived, modified, or relinquished herein. Any disputes over the interpretation, or implementation of this Letter of Agreement shall be resolved under the grievance procedure in the Collective Bargaining Agreement.

FOR
COLDWATER COMMUNITY SCHOOLS

By: Paul Foy
Its: Superintendent
Dated: 11/4/2024

FOR
COLDWATER EDUCATION
ASSOCIATION/MEA/NEA

By: Chris Williams
Its: CEA President
Dated: 11-4-24

LETTER OF AGREEMENT

2024-2025 EXPEDITED POSTING

This Non-Precedent Setting Letter of Agreement is entered into and between COLDWATER COMMUNITY SCHOOLS (the "District") and COLDWATER EDUCATION ASSOCIATION/MEA/NEA (the "Association").

The District and the Association agree to an expedited posting process for the Month of August for any and all positions covered by the 2024-2025 Collective Bargaining Agreement for the 2024-2025 School Year. Such postings for vacant positions will only require a twenty-four (24) hour internal/external posting.

Any unfilled position at the end of August will be re-posted in September using the timelines and processes found in the Collective Bargaining Agreement. Should the District and the Association agree to extend this Agreement they shall do so in writing prior to the end of August.

By entering into this Agreement, neither the District nor Association waive any other rights or protections respectively afforded them by the terms of the Collective Bargaining Agreement.

COLDWATER BOARD OF EDUCATION

COLDWATER EDUCATION ASSOCIATION/MEA/NEA

By: [Signature]
Its: Superintendent
Dated: 8-22-24

By: [Signature]
Its: Donna E. Jones / NEA Pres
Dated: 8-22-24

LETTER OF AGREEMENT

FAMILY MEDICAL LEAVE ACT (FMLA) CLARIFICATION FOR EMPLOYEE

This Non-Precedent Setting Letter of Agreement is entered into and between COLDWATER COMMUNITY SCHOOLS (the "District") and COLDWATER EDUCATION ASSOCIATION/MEA/NEA (the "Association").

The District and the Association agrees and that Elizabeth Tucker, a teacher at Coldwater Community Schools will continue her FMLA leave on Monday August 19, 2024 that was started on May 23, 2024.

Elizabeth shall return to work from her FMLA leave on October 31, 2024. Elizabeth shall provide a return to work letter to the District.

By entering into this Agreement, neither the District nor Association waive any other rights or protections respectively afforded them by the terms of the Collective Bargaining Agreement, or the Family Medical Leave Act, as applicable.

COLDWATER BOARD OF EDUCATION

COLDWATER EDUCATION ASSOCIATION/MEA/NEA

By: [Signature]
Its: Superintendent
Dated: 8-22-24

By: [Signature]
Its: Janet E. Jones/PEA Rep
Dated: 8-22-24

LETTER OF AGREEMENT

2024-2025 Elementary Teacher Offset Time

This Letter of Agreement is entered into and between COLDWATER COMMUNITY SCHOOLS (the "District") and COLDWATER EDUCATION ASSOCIATION/MEA/NEA (the "Association").

The District and the Association agree to a non-precedent setting Letter of Agreement in order to form a non-binding, exploratory committee limited to resolving school day length disparity between the elementary and secondary schedules.

The exploratory group will be made up of elementary and secondary teachers from the Coldwater Education Association. The administrative delegates will be decided by the superintendent.

The group will meet outside of the scheduled work-day and shall not receive additional compensation.

The group will start no later than August 12th, 2024 to propose one or more solutions to the superintendent and the union leadership prior to March 1st, 2025. Should both the District and the Association agree, they may re-open Article V, Section 12 of the Collective Bargaining Agreement and any other necessary sections to make changes to the Agreement which will be memorialized in a letter of agreement to be ratified by both sides.

By entering into this Agreement, neither the District nor Association waive any other rights or protections respectively afforded them by the terms of the Collective Bargaining Agreement.

COLDWATER BOARD OF EDUCATION

COLDWATER EDUCATION ASSOCIATION/MEA/NEA

By: [Signature]
Its: Superintendent
Dated: 7-16-24

By: [Signature]
Its: CEA President
Dated: 7-16-24